

24STLC02506 24STLC02506

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-03

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Case Number: 24STLC02506 Hearing Date: August 3, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Mark Tunne's Petition

to Correct and Vacate Arbitration Award and Defendants Brandon Blake and Blake & Wang, P.A.'s Petition to Confirm Arbitration Award are continued to 09/14/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 08/17/2026, Defendants are to file proofs of service of the Notice of Ruling, Petition to Confirm Arbitration Award, and Notice of New Hearing Date in accordance with the statutory requirements.

Analysis:

On April 5, 2024, Plaintiff Mark Tunne ("Plaintiff") filed the instant action against Defendants Brandon Blake and Blake & Wang, P.A. ("Defendants"). The Court granted Defendants' Motion to Compel Arbitration on September 30, 2024. (Minute Order, 09/30/24.) On April 3, 2026, Plaintiff filed the instant Petition to Correct and Vacate Arbitration Award. Defendants filed a Petition to Confirm Arbitration Award on April 30, 2026.

The Petition to Correct or Vacate came for hearing on July 6, 2026, at which time the Court found that it did not meet the statutory service requirements. (Minute Order, 07/06/26.) The Court found the same to be true of the Petition to Confirm Arbitration Award. (Ibid.) The Court continued the hearing on the Petition to Correct or Vacate, and advanced the hearing on the Petition to Confirm, to August 3, 2026. (Ibid.) Plaintiff was ordered to file proof of service of the Petition to Correct or Vacate, and both parties were ordered to file proofs of service of the Notice of New Hearing Date. (Ibid.) The parties were also warned that failure to

comply with the order might result in the Petitions being denied. (Ibid.)
Finally, Defendants were ordered to give notice of the ruling continuing the hearing date. (Ibid.)

On July 14, 2026, Defendants filed a Notice of Ruling and a Notice of Petition to Confirm Arbitration Award. Plaintiff has filed no additional papers since the hearing.

Discussion

With respect to the documents filed by Defendants on July 14, 2026, the Notice of Ruling and the Notice of Petition to Confirm Arbitration Award show service upon Plaintiff by only electronic mail. (Notice of Ruling, filed 07/14/26, pp. 7-8; Notice of Petition, filed 07/14/26, p. 5.) A review of the Petition to Confirm filed on April 3, 2026, also shows service upon Plaintiff by only electronic mail. (Petition to Confirm, filed 04/30/26, pp. 16-17.) Plaintiff, as a self-represented litigant, must consent to electronic service as set forth in Code of Civil Procedure section 1010.6. Specifically,

Express consent to electronic service may be given by either of the following:

(i)

Serving a notice on all parties and filing the notice with the court.

(ii)

Manifesting affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving electronic service. The act of electronic filing shall not be construed as express consent.

(Code Civ. Proc., § 1010.6, subd. (c)(3).) The Court finds nothing in the record that would demonstrate Plaintiff's express consent to electronic service.

In light of improper service of the Court's ruling dated July 6, 2026, it does not appear from the record that Plaintiff had proper

notice of the new hearing date. Nor from the record can the Court find that Plaintiff was properly served with the Petition to Confirm. Therefore, the Court continues the hearing on both Petitions to give Defendants an opportunity to correct service of the Notice of Ruling from July 6, 2026 and the Petition to Confirm Arbitration Award upon Plaintiff, and give Plaintiff proper notice of the new hearing date.

Conclusion

Plaintiff Mark Tunne's Petition to Correct and Vacate Arbitration Award and Defendants Brandon Blake and Blake & Wang, P.A.'s Petition to Confirm Arbitration Award are continued to 09/14/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 08/17/2026, Defendants are to file proofs of service of the Notice of Ruling, Petition to Confirm Arbitration Award, and Notice of New Hearing Date in accordance with the statutory requirements.

Defendants to give notice.